

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hannah Sampson	Team: Squad #7	CCRB Case #: 201908398	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/20/2019 8:56 PM	Location of Incident: Outside § 87(2)(b)	Precinct: 75	18 Mo. SOL 3/20/2021	EO SOL 11/4/2021	
Date/Time CV Reported Sun, 09/22/2019 10:53 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 09/22/2019 10:53 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Favio Quizhpi	00000	948119	PSA 2
2. POM Biko Harvey	07331	960639	PSA 2
3. POM John Espinal	19909	962383	PSA 2

Officer(s)	Allegation	Investigator Recommendation
A.LT Favio Quizhpi	Abuse: Lieutenant Favio Quizhpi stopped § 87(2)(b)	§ 87(2)(b)
B.LT Favio Quizhpi	Force: Lieutenant Favio Quizhpi used physical force against § 87(2)(b)	§ 87(2)(b)
C.POM John Espinal	Abuse: Police Officer John Espinal searched § 87(2)(b)	§ 87(2)(b)
D.POM John Espinal	Abuse: Police Officer John Espinal refused to provide his shield number to § 87(2)(b)	§ 87(2)(b)
E.POM Biko Harvey	Abuse: Police Officer Biko Harvey refused to provide his shield number to § 87(2)(b)	§ 87(2)(b)

Case Summary

On September 22, 2019, § 87(2)(b) filed this complaint with the CCRB via telephone. The CCRB does not have video footage of this incident.

During her intake call, § 87(2)(b) was scheduled for an interview at the CCRB on September 27, 2019. On September 27, 2019, a call was placed to § 87(2)(b) to discuss Mediation. § 87(2)(b) declined to mediate this complaint and stated that she would not be able to appear for her interview scheduled for that day due to her work schedule. She also stated that because she works late, she would not be able to appear at the CCRB for an interview until after 7:00 p.m. § 87(2)(b)

§ 87(2)(b) Given her inability to appear at the CCRB during standard business hours, § 87(2)(b) was scheduled for a field interview on September 30, 2019, at 1:00 p.m. at her place of employment § 87(2)(b). On September 30, 2019, at 12:50 p.m., the undersigned appeared at the designated interview location. A call was placed to § 87(2)(b) at 12:51 p.m. to inform her that the investigators had arrived. § 87(2)(b) answered the call and said she was still § 87(2)(b) and said to "give her a second." She then hung up the call. At 1:32 pm, a second call was placed to § 87(2)(b). The call was answered and rustling sounds could be heard in the background. However, § 87(2)(b) did not come to the phone and the call was disengaged by the recipient. At 1:53 pm, a third call was placed to § 87(2)(b). The call rang once before connecting to a voice mailbox. No voice message could be left because the mailbox was full. The investigators left the location at 2:00 p.m. On October 1, 2019, a call was placed to § 87(2)(b) to reschedule her missed appointment. The call immediately connected to a voice mailbox and a message was left requesting a call back. On October 2, 2019, a missed appointment letter and email were sent to § 87(2)(b). As of October 8, 2019, a search of the DOC for NYC database revealed that § 87(2)(b) is not currently incarcerated.

To date, § 87(2)(b) has not contacted the CCRB to reschedule her missed appointment. § 87(2)(g)

Squad No.: ____7____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date